IN THE NATIONAL COMPANY LAW TRIBUNAL
CHANDIGARH (COURT – II)
(Through Hybrid Mode)

Item No. 2
CP (CAA) No. 58/Chd/Hry/2022
(2nd Motion)
(Under Clarification)

IN THE MATTER OF:

Bibby Financial Services (India) Pvt. Ltd. ... **Transferor Company**

With

Bibby FS (Holdings) Ltd. ... **Transferee Company**

Under Section: 232-232, CA 2013

Order delivered on 09.10.2024

CORAM:
SHRI. UMESH KUMAR SHUKLA, HON'BLE MEMBER (T)
SHRI. HARNAM SINGH THAKUR, HON'BLE MEMBER (J)

PRESENT:
For the Petitioner : Mr. Pradeep Nauharia and Mr. Amit Goel Advocates

For the RBI : Mr. Deepak Suri and Mr. K.V. Singhal, Advocates

ORDER

Affidavit of service has been filed vide diary No.01709/12 dated 05.09.2024 and refiled on 17.09.2024. The same are taken on record. Statement by way of affidavit on behalf of the RBI has been filed vide diary No.01709/13 dated 07.10.2024. The same is also taken on record.

It is stated by the learned counsel for the RBI that as per para 2 of the affidavit the RBI has no objection to the proposed amalgamation scheme as for the Financial Years 2021-2022, 2022-23, 2023-24 and applicant Company-Transferor Company did not carry any NBFC business.

Heard. Order reserved.

Sd/-
(UMESH KUMAR SHUKLA)
HON'BLE MEMBER (T)

Sd/-
(HARNAM SINGH THAKUR)
HON'BLE MEMBER (J)

09.10.2024
Priyanka